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Starting a case for parentage in court HOW-TO

If you want to establish parentage, but there is no *Voluntary Acknowledgement of Parentage* (VAP), you must file a petition in court. You must also serve the other parent with a petition and summons. The judge can then decide parental responsibilities (custody), including decision-making power, parenting time (visitation), and child support.

The following people can establish parentage:

- The biological mother
- Someone who believes they are the parent of a child
- The child (rarely)

When to talk to a lawyer

It is always best to have a lawyer for your case, but it is possible to proceed without one. It is especially helpful to talk to a lawyer before filing your case if:

- The mother was married to someone else at the time of the child's birth or within 300 days after the child's birth,
- The mother and another man signed a Voluntary Acknowledgement of Paternity, or
- There is a court order that states someone else is the child's parent.

1. Fill out parentage forms

First, fill out and sign the forms listed below. If you are filing in person, make three copies of each form.

- *Petition*: Starts the case and gives the judge information as to why you are filing. Select the appropriate form below:
  - *Mother's Petition*
  - *Father's Petition*

- *Notice to Presumed Parent*: not needed if Section 6 of the Petition does not apply to your case because the mother was not married at or before birth and she was not married within 300 days after birth.
- *Parentage Summons* : tells the other person about the case. You might get a court date when you file your case, and if so, put that date on the summons.
- *Affidavit of Military Service*
- *Application for Waiver of Court Fees*: needed only if you cannot afford the court fees

2. File your forms with the court

Most family law cases in Illinois are filed in the county where the child lives. You may not be able to file your case in Illinois if:

- The other parent does not live in Illinois, or
- The child has lived in Illinois for less than six months.

Some rules vary from county to county, including rules about:

- case management conference,
- parenting classes,
- mediation,
- need for financial affidavits, and
- whether to list your child's name or initials on court papers.

Now that you have filled out your forms, you need to file them with the appropriate circuit clerk. You will need to electronically file ("e-file") them unless you have an exemption, then you can file in person.

3. Tell the other party about your case

Take one copy of the file-stamped petition and the summons to the sheriff in the county where the other parent lives or works. The sheriff will try to serve the respondent (other parent) with the papers. If you were granted a fee waiver, give a copy of your stamped *Order Granting Fee Waiver* to the sheriff. If you do not have a fee waiver, you will have to pay the sheriff for service. Keep a copy of the petition for your records.

If a *Notice to Presumed Parent* is required in your case, you have two options:

- Give a copy to the sheriff to serve, or
- Give the *Notice* to the circuit clerk with an *Affidavit of Last Known Address* and the required mailing fee for the clerk to mail.

You should try to serve the respondent as quickly as possible. If you do not serve the respondent with a summons telling them about your case within the required time, the case may be dismissed.

Learn more about how to serve a summons.

After the other parent is served with the summons and petition, all other service is done by mail or, if the respondent consents, by email. You must fill out and file a *Proof of Service* each time you mail the other parent a court document.

4. Confirm service of your petition and summons

The sheriff will fill out the Proof of Service section of the summons. They will either file it with the court or return it to you.

If they are going to file it with the court, call the circuit clerk or check the online docket before your court date to make sure the summons was returned and the proof of service was filed. Ask the clerk how to get a copy of the Proof of Service.

If the sheriff returns the summons to you, file it with the circuit clerk. Keep a copy for your records. In Cook county, provide a courtesy copy to the court before your next court date.

If the other parent was not served, you must try to serve them again with an "alias (Alias) summons." An alias (Alias)summons is a second summons. You can serve an alias (Alias) summons just like a normal summons, with the instructions above. You cannot move forward with their case until the defendant is served.

If the sheriff is not able to serve the other parent, you can consider using a “special process server” to serve them. Learn more about this process and use this form to ask the court for permission to use a special process server.

5. Prepare for your hearing

If you are not sure whether the judge will find that you or the other parent are the child's parent, you may want to wait until after the court decides parentage to file a proposed *Parenting Plan* and take the court-approved parenting class.

Learn more about Parenting Plans.

If you take the parenting class before your hearing, bring a copy of your proof of completion. If you filed a Parenting Plan before your hearing, bring two copies to your hearing.

Before the hearing, prepare the *Order for Parentage and Allocation of Parental Responsibilities* by filling in the parents' names at the top of the order.

6. Go to your hearing

Go to the hearing. Below are some common possibilities and tips for each one.

The other parent comes to court and agrees with you

If all goes well, you will testify briefly, and the judge may grant your request and enter your proposed parenting plan as the final order. Give the judge proof that you took the parenting class. The other parent may also need to show they took the class. The judge

will sign your *Order for Parentage and Allocation of Parental Responsibilities*. Keep one copy of the signed order for your records and give one to the other parent.

The other parent does not come to court *and* does not file a response

You can ask the judge to find the other parent in "default." You may be required to schedule another court date to enter your order. You will need to fill out and send the other parent a *Notice of Hearing*. If the other parent does not come to court on the next court date, the judge may ask you questions under oath and grant your request. Give the judge proof that you took the parenting class. The judge will sign your *Order for Parentage and Allocation of Parental Responsibilities*. Keep one copy of the signed order for your records and mail a copy to the other parent. Then fill out and file the *Proof of Delivery* with the circuit clerk.

You go to court and something still needs to be done in your case

Maybe you have not taken the parenting class yet, or the other parent was not served properly. The judge will tell you what you need to do and when to come back to court. If the other parent is not at this court date, you will need to send them a copy of the order including the next court date.

The other parent comes to court and does not agree they are the parent

If the other parent denies parentage, the judge may order DNA testing. You may have to pay for that testing, or the cost may be shared. You may be able to get the fees waived if you had your court fees waived. The court will get a report about the DNA results. The judge may give the other parent time to file a response and will schedule another court date after the DNA testing.

The other parent comes to court and does not agree with you

If the other parent admits parentage, or if it is proven by DNA testing, the other parent may not agree about allocation of parental responsibilities. You then have a "contested case." The judge will probably order you and the other parent to go to mediation. There is a fee for mediation, but you may be able to get your fee waived if your court fees were waived. The judge will give you another court date. If you and the other parent do not reach an agreement in mediation, the judge will probably talk to you at the next court date about having a trial.

They may appoint an attorney for the child, either a “Guardian ad Litem” or a “Child’s Representative,” who will consider the child’s interests and needs and have this attorney report back to the court before making any decisions. These attorneys cost money and it is unlikely their fees will be completely waived, even if your court fees were waived.

If you still cannot reach an agreement, the court will hold a trial to consider the facts and enter a parenting plan that they think is best for the child. A contested trial can get complicated, and you may want to get a lawyer. Be sure to contact the lawyer as soon as you can to give them enough time to prepare for the trial.

Learn more about an allocation of parental responsibilities.

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1 2 3 4 5

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